

4.

CASE #	CASE NAME	HEARING NAME
CVPS2503676	BONILLA VILLAFRANCA VS FORD MOTOR COMPANY, A DELAWARE CORPORATION	PLAINTIFF'S MOTION TO COMPEL FURTHER RESPONSE TO SPECIAL INTERROGATORIES; AND REQUEST FOR SANCTIONS

Tentative Ruling: Denied.

Responding party to provide notice pursuant to CCP 1019.5.

This is a lemon law case. Plaintiffs purchased a 2023 Ford Bronco and alleges it began experiencing issues that required numerous visits to a repair facility. Plaintiffs bring claims under the Song-Beverly Warranty Act.

On January 12, 2026, Plaintiffs sent discovery to Defendant Ford. On February 13, 2026, Ford served unverified responses to Plaintiffs' requests and later served verifications on February 20, 2026. Plaintiffs contend Defendant's responses were insufficient and required supplementation.

Plaintiffs seek to compel further responses to: (1) Special Interrogatories numbers 10, 26, 44-45, 47, and 49-58; and (2) Request for Production of Documents numbers 16-18, 20-30, and 45-59. Plaintiffs argue there is good cause to require further responses and argues Ford's responses are not code-compliant. Plaintiffs seek monetary sanctions in connection with each motion (\$2,160 for MTC SROGs and \$2,075 for MTC RPD).

Ford opposes the motions. Ford contends its objections were proper and code-compliant. Ford argues the interrogatories are overly broad and seek irrelevant information. Ford argues some of the requests improperly seek privileged information or discovery-on-discovery. Ford argues the requests for monetary sanctions should be denied because Ford has properly opposed the motions with substantial justification.

The instant motion was previously heard on July 24, 2026 and continued for counsel to meet and confer regarding a stipulated protective order that would address many of the currently disputed issues.

After meeting and conferring, the remaining disputed issues are Special Interrogatories numbers 10, 26, 47, 49-54, and 55-58.

No. 10

This interrogatory seeks facts supporting Ford's contention that the vehicle does not qualify for repurchase or replacement under the SBA. Plaintiff seeks Defendant's RAV policies from 2023 to the present. In response to the interrogatory, Ford answered by identifying various documents that supported the contention, which is permissible. (*Deyo v. Kilbourne* (1978) 84 Cal.App.3d 771, 783-784.) Ford sufficiently answered the interrogatory. DENIED

No. 26

This interrogatory asked Ford to identify training for persons who evaluate repurchases generally. Ford referenced documents it had produced and explained how those documents were responsive. This is a sufficient response. DENIED.

No. 47

This interrogatory asks Ford to describe its efforts to preserve relevant and discoverable information. Ford only objected to the interrogatory. Ford argued Plaintiff is improperly seeking “discovery on discovery,” which was discussed above. Ford also argues this request violates the attorney-client privilege. Once again, without any evidence Ford has improperly preserved relevant information, this request is improper. DENIED.

Nos. 49-54, 55-58: These interrogatories seek the identities of each person involved in the “operations, maintenance, expansion, archiving, and upkeep” of Ford computer systems and asks Ford to state or specify information about the document retention policies relating to certain Ford databases. Once again, since Plaintiff has not provided any evidence that indicates Ford has improperly handled maintaining its databases or electronically stored information, the request is improper. DENIED.

5.

CASE #	CASE NAME	HEARING NAME
CVPS2503676	BONILLA VILLAFRANCA VS FORD MOTOR COMPANY, A DELAWARE CORPORATION	PLAINTIFF’S MOTION TO COMPEL FURTHER RESPONSES TO REQUEST FOR PRODUCTION OF DOCUMENTS, SET ONE; AND REQUEST FOR SANCTIONS

Tentative Ruling: Denied.

Responding party to provide notice pursuant to CCP 1019.5.

This is a lemon law case. Plaintiffs purchased a 2023 Ford Bronco and alleges it began experiencing issues that required numerous visits to a repair facility. Plaintiffs bring claims under the Song-Beverly Warranty Act.

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The instant motion was previously heard on July 24, 2026 and continued for counsel to meet and confer regarding a stipulated protective order that would address many of the currently disputed issues.

After meeting and conferring, the remaining disputed issues are numbers 47, 48, 50-54, and 55-60.